

DECISIONS · 21 SEP 2001

Judgment — Antibes Commercial Court

TYPE	COURT	DATE	PARTIES
Court decision	The Antibes Commercial Court	21 Sep 2001	SA Crédit du Nord v. SARL B et O

SUMMARY SHEET

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Overview: judgment of the first chamber of the Antibes Commercial Court, between SA Crédit du Nord and SARL B et O, a company of the franchisee Bernard Collorafi, which did not appear. It concerns the repayment of a bank loan.

Key points

Crédit du Nord had granted B et O a loan of 3,275,000 F on 4 October 1996, over seven years and 84 monthly instalments, to finance the works for a McDonald's restaurant in Antibes. B et O stopped its repayments in 1998, following its difficulties with McDonald's, a company to which it was bound by a lease-management agreement (location-gérance). The bank invoked the acceleration clause (article 7 of the agreement), after a formal notice of 7 January 1999. The court, noting that the claim is certain, liquidated and due, orders B et O to pay 2,623,755.89 F in principal and interest calculated up to 4 January 1999, plus contractual interest, orders provisional enforcement and awards 5,000 F under article 700 of the NCPC, plus costs.

Significance

This decision illustrates the knock-on effect of the conflict with McDonald's on the franchisee's financial commitments: the cessation of operation leads to the failure to repay, then to the judgment obtained by the lending bank.

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Source: bernardcollorafi.org/en/documents/judgment-antibes-commercial-court-credit-du-nord-loan-b-et-o-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.